



POLICE DEPARTMENT

March 26, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202409832 (Incident Date: September 30, 2024) regarding Sergeant Kevin Cedenó, Tax No. 960346 (PODS Case No. C-036939)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Kevin Cedenó and has determined that the proposed penalty of a Schedule "B" Command Discipline is not warranted.

On September 30, 2024, the complainant called 911 to report that his child's mother had been harassing him. Prior to his arrival, Sergeant Cedenó learned that the complainant was named on an active, probable cause to arrest I-Card. Upon arrival, the complainant remained in his apartment, door open, while officers interviewed him from the hallway. At one point, the complainant crossed the threshold of his own doorway to look out into the hallway, where multiple officers were standing. After speaking with the complainant, Sergeant Cedenó informed the complainant that he was going to step inside to help the complainant with the report he requested. The complainant proceeded to step aside, and the officers entered the apartment.

CCRB claims that Sergeant Cedenó's entry was only possible, due to a coercive "ruse" to help the complainant with a report. According to Legal Bureau Bulletin Vol. 44, No. 2 (Exceptions to the Payton Rule) "officers may only employ a ruse to seek entry if the ruse is non-coercive." Whether consent is voluntary is "determined by the totality of the circumstances." Here, Sergeant Cedenó did not misrepresent his identity or authority. He did not manufacture a pretext to enter the apartment, as the complainant called the police to make a report.

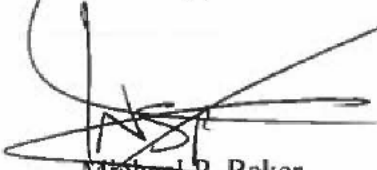
It has been determined that no disciplinary action is warranted. Sergeant Cedenó stated in his interview that when the complainant stepped aside, he inferred that to be consent to enter the apartment. Sergeant Cedenó further acknowledged that this consent was necessary to enter the apartment. After reviewing the body-worn camera footage, and considering the totality of the circumstances, the entry by Sergeant Cedenó was proper due to implied consent.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Therefore, based on the foregoing, the Police Commissioner directs that Sergeant Cedenoreceive no disciplinary action for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office